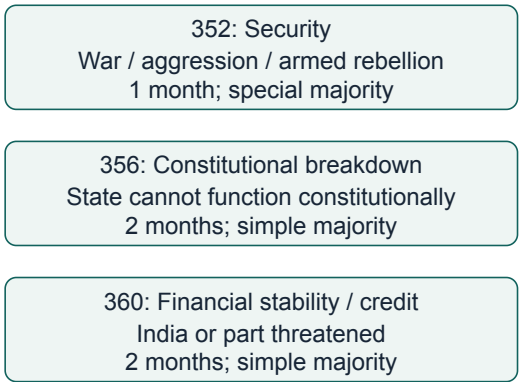
Emergency Provisions

1. Three constitutional mechanisms

- **Part XVIII, 352-360:** exceptional powers protect security, constitutional government and financial stability. They centralise authority without formally rewriting the federal structure; **constitutional limits and judicial review remain**.
- **352 - National Emergency:** war, external aggression, armed rebellion threatening security of India/part. **356 - President's Rule:** State government cannot function constitutionally. **360 - Financial Emergency:** financial stability/credit of India/part threatened.
- “National Emergency”, “State Emergency” and “constitutional emergency” are common labels; 352 says Proclamation of Emergency, 356 does not itself use “emergency”.



Three separate grounds and procedures.

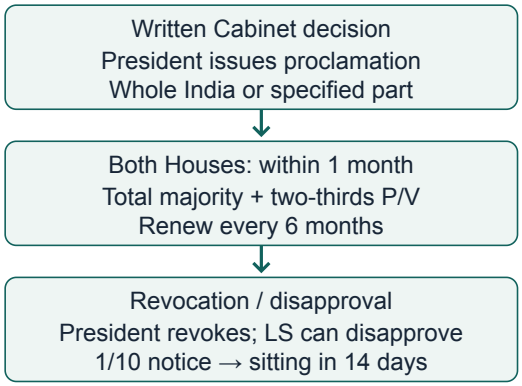
2. National Emergency: grounds and safeguards

- Actual or **imminent danger** of war/external aggression/armed rebellion suffices. Multiple proclamations on different grounds may coexist (**38th Amendment, 1975**); whole India or specified part (**42nd, 1976**).
- **44th Amendment, 1978:** replaced vague “internal disturbance” by **armed rebellion**; **internal disturbance remains in 355**, but is insufficient by itself for 352.
- **Written Union Cabinet decision is mandatory**: PM alone cannot supply the constitutional recommendation. Cabinet here = PM + Cabinet-rank Ministers, not entire Council of Ministers.
- 38th's attempt to immunise presidential satisfaction from review removed by 44th; mala fides, irrelevant/extraneous grounds and perversity can be reviewed. Chapter links this to **Minerva Mills, 1980**; do not confuse this with that case's main amendment/basic-structure holding.

3. Approval, continuation and revocation: 352

- Both Houses approve **within one month**. Each needs **majority of total membership + at least two-thirds present/voting**. After approval, continued for **six months at a time**; no fixed maximum if valid periodic approvals continue.
- Lok Sabha dissolved during initial/further approval period: Rajya Sabha approval plus approval by new Lok Sabha **within 30 days of its first sitting** preserves proclamation. Not a general exemption from Lok Sabha approval.

- President may revoke by later proclamation; **revocation needs no parliamentary approval**. Must revoke if Lok Sabha disapproves continuation by **simple majority**.
- **One-tenth total LS members** give written notice to Speaker (President if House not sitting) → special sitting **within 14 days** to consider disapproval. **Approval = both Houses/special majority; disapproval = LS only/simple majority**.
- 44th shortened initial approval from two months to one, added recurring approval/special majority and parliamentary revocation safeguards.



Article 352 approval and revocation safeguards.

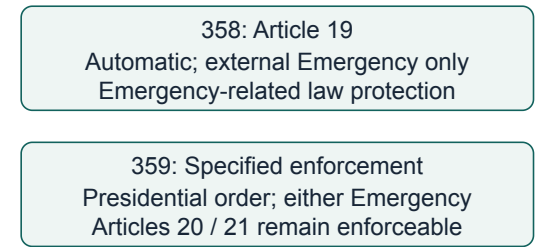
4. Effects on federal relations and legislative terms

- **353 executive:** Union directs States on any executive matter; State governments do not automatically disappear. **250 legislative:** Parliament legislates on State subjects/GST; States still legislate but inconsistent State law yields while Union law operates.
- State-subject laws under 250 cease **six months after Emergency ends**; valid past acts protected as provided. President may issue ordinances when **both Houses are not simultaneously in session** and 123 conditions satisfied; one House's recess can suffice.
- Under a geographically limited Emergency, 353 effects can reach other States **when security of India/part is threatened by activities in or relating to the affected part**; do not state unconditional nationwide extension.
- **354:** President modifies operation of revenue-distribution provisions **268-279**, order laid before both Houses; cannot extend beyond end of financial year when Emergency ceases.
- **83(2)/172(1):** Parliament extends LS/State Assembly term **up to one year at a time**, not beyond **six months after Emergency ends**. Fifth LS extension authorised twice; dissolved **18 January 1977** before second extended end date.

5. Article 358 versus Article 359

- **358:** Article **19** restraints relax **automatically**, only during **war/external-aggression** Emergency, **not armed rebellion**. No separate presidential order needed.
- **359:** President's order suspends **right to seek court enforcement** of specified Part III rights and pending proceedings for stated period; **Articles 20 and 21 cannot be included**. Requires order; available for external or armed-rebellion Emergency; whole/part territory, with constitutional conditions.
- **359 order laid before each House as soon as possible**; Article does **not require a separate parliamentary approval vote** merely because it is laid.

- Both 358/359(1A) protections are limited to laws containing the required **Emergency-related recital**, and executive action under such law. Do not assume arbitrary unrelated action becomes immune, or all legal remedies disappear.
- When special protection/order ends, inconsistent law ceases prospectively to that extent; constitutionally protected past action is not retrospectively invalidated merely because rights restraints return.
- **Territorial trap:** textbook says 358 always whole India. Where Emergency confined to part, 358's proviso conditionally permits protected laws/action elsewhere if security threatened by activities in/related to emergency area; **not an unconditional blanket geographic rule**.
- **Recall:** 358 = **19 / automatic / external only**; 359 = **specified enforcement / presidential order / both grounds / never 20-21**.



Rights and judicial enforcement must be distinguished.

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6. National Emergency history

- **October 1962-January 1968:** external aggression, China/NEFA (now Arunachal Pradesh); continued through **1965 Pakistan war**, so no fresh proclamation then.
- **December 1971-March 1977:** external aggression, Pakistan. **June 1975-March 1977:** internal disturbance, coexisted with 1971 proclamation; old ground no longer available under 352.
- **1975 Emergency:** controversial restrictions/abuse; 1977 election brought Janata government; **Shah Commission** investigated, criticised justification; **44th Amendment** strengthened safeguards.

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7. President's Rule: grounds and duration

- **355:** Union duty to protect States and ensure constitutional government. **356:** President's satisfaction on **Governor report or otherwise**. **365:** non-compliance with constitutional Union directions may support breakdown finding; not automatic imposition.
- Both Houses approve **within two months**, **simple majority**. Initially lasts **six months from proclamation**, renewed every six months; **ordinary maximum three years**.
- Lok Sabha dissolution rule: RS approval plus LS approval **within 30 days of reconstituted House's first sitting** applies to initial/continuation approval.
- **Beyond one year, both conditions required:** National Emergency operating in whole India or whole/part concerned State **and** EC certification that elections cannot be held owing to difficulties. One condition alone insufficient.
- **Historical Punjab exception:** rule beginning May 1987 continued up to five years through special amendments, including **68th Amendment, 1991**; not today's general maximum.
- President may revoke anytime by proclamation, without parliamentary approval. No equivalent 352 special LS-disapproval procedure in 356.

8. President's Rule: what changes and what remains

- President assumes State executive functions/Governor or other executive powers as provided; State ministry dismissed; Governor administers with officials/advisors. Legislature suspended/dissolved; parliamentary legislative/budget authority.
- **357:** Parliament can confer State legislative power on President/other authority; conferral of duties on Union officers; President may authorise State Consolidated Fund spending pending parliamentary sanction when LS not sitting.
- **State laws made during President's Rule survive restoration**, until competent authority alters/repeals/re-enacts. Compare 250 laws' six-month expiry.
- **HC powers/status cannot be assumed or suspended**; President's Rule does **not automatically suspend Fundamental Rights**.
- Under Bommai, Assembly normally kept suspended until parliamentary approval before irreversible dissolution; unconstitutional proclamation can be invalidated and government/Assembly restored.

9. Bommai and proper use of 356

- **S.R. Bommai, 1994:** judicial review; relevant material necessary; Union must justify challenged action; court assesses relevance, mala fides/perversity, not ordinary political merits. Restoration possible.
- **Floor test** resolves genuine majority doubts; Governor's personal assessment is insufficient. New Union ruling party cannot remove State ministries merely because opposition governs them. **Federalism and secularism are basic structure**.
- Potentially proper: hung House **after realistic alternatives explored**; majority party refuses and no coalition possible; defeated ministry resigns/no alternative; deliberate constitutional subversion; wilful failure of constitutional duties endangering security; disregard of valid constitutional Union direction that actually warrants breakdown finding.
- Improper: skipping alternatives/floor test; defeat in LS election despite State-Assembly majority; ordinary disturbance short of breakdown; mere maladministration/corruption allegations/financial pressure; partisan/intra-party aims; no warning/opportunity to correct except urgent disastrous situation.
- Historical examples: first **Punjab, 1951**; **nine State dismissals 1977**, repeated against nine in **1980**; **1992 MP/Himachal/Rajasthan** upheld on secularism grounds; Nagaland 1988, Karnataka 1989, Meghalaya 1991 cases were not upheld.
- Ambedkar hoped 356 would remain exceptional/“dead letter”; chapter's **125+ uses** is a dated textbook tally, not an updated count.

10. Financial Emergency - Article 360

- Trigger: threatened financial stability/credit of India or any part. Both Houses approve **within two months**, **simple majority**; LS dissolution safeguard = RS approval + **30 days after new LS first sitting**.
- Once approved, **indefinite until revoked; no six-monthly renewal or fixed maximum**. President revokes without parliamentary approval. Satisfaction reviewable after 44th removed 38th immunity.
- Union directs financial propriety and other necessary measures; State salaries/allowances may be reduced; specified Money/financial Bills reserved after passage. Union salaries and **SC/HC judges' salaries/allowances** may also be reduced under directions.

- No automatic suspension of Fundamental Rights. Chapter records **none declared**, even during 1991 crisis; distinguish economic hardship from a formally proclaimed 360 Emergency.
- Ambedkar compared the emergency financial response to US recovery measures during Great Depression; comparison is historical justification, not identical legal machinery.

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11. Debate and one-minute recall

- Critics: **H.V. Kamath** - danger to liberty/federalism; **K.T. Shah** - strengthening Centre over units and government over people; **T.T. Krishnamachari** - executive dictatorship; **H.N. Kunzru** - loss of State financial autonomy.
- Supporters: **Alladi Krishnaswami Ayyar** - constitutional survival; **Mahabir Tyagi** - safety valve; **Ambedkar** - necessity while acknowledging potential political abuse.
- **352: 1 month / special / 6-month renewals / no fixed maximum. 356: 2 months / simple / 6-month renewals / ordinarily 3 years. 360: 2 months / simple / no recurring renewal / no fixed maximum.**
- Mains: exceptional necessity → centralising/rights risks → written Cabinet decision, parliamentary control, protected 20/21, floor test/judicial review → proportional use and constitutional accountability.

Reference

- Official Constitution: Part XVIII; approval, territorial provisos and rights safeguards.